

HEADNOTE

“1. A device claim defined by structural features is not, as a rule, limited to the device performing a specific function. For the purposes of assessing the novelty of such a claim, this means that if the prior art discloses a device which fulfils all the structural features of the claim and is at the same time suitable for the purpose specified in the claim, the claim lacks novelty, even if not all the technical effects of the claimed device described in the patent at issue but not claimed are realised in the same way in the prior art.

2. There is no obvious typographical error in the prior art if, from the perspective of a person skilled in the art, it does not seem far-fetched that a particular term is in fact intended in the sense in which it is worded, and it is not immediately apparent to the person skilled in the art that there is a typographical error and that something other than what is stated is intended.”

COURT
Central Division in Munich

PROCEEDINGS
Action for revocation

PATENT
EP 4 283 140 B1

Fastening element made of wood
and/or wooden materials

KEYWORDS

device claim

obvious typographical error in prior art

novelty

SUMMARY

The Central Division in Munich ruled on an action for revocation. The patent at issue relates to a fastening element made of wood and/or wooden materials. According to the headnotes of the decision, a device claim based on structural features is not automatically limited by the specific function mentioned in the patent, which means that novelty is destroyed if the prior art already discloses a device with all the same structural features that is also capable of performing that function, regardless of whether the prior art achieves all the technical effects described in the patent in the same way. A typographical error is not considered obvious in prior art documents if a person skilled in the art would not regard the wording as implausible and would not immediately recognize that an error must have occurred rather than the term being intentionally used as written.